BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI,

Plaintiff,

v.

DIANA CANDELARIA, in her individual capacity; STEVE GORDON, in his official capacity; and DOES 1-10,

Defendants.

Case No. 3:26-cv-08272-LJC

[PROPOSED] ORDER GRANTING PLAINTIFF'S MOTION TO STRIKE DEFENDANTS' ANSWER (ECF NO. 11) PURSUANT TO FED. R. CIV. P. 12(f)

Date: November 12, 2026
Time: 1:30 p.m.
Courtroom: Videoconference (Zoom)
Judge: Hon. Lisa J. Cisneros

Action Filed: August 10, 2026
Operative FAC: August 17, 2026

[PROPOSED] ORDER GRANTING PLAINTIFF'S MOTION TO STRIKE DEFENDANTS' ANSWER (ECF NO. 11) PURSUANT TO FED. R. CIV. P. 12(f)

Plaintiff Brendan Ngwa Nforbi's Motion to Strike Defendants' Answer (ECF No. 11) Pursuant to Federal Rule of Civil Procedure 12(f); or, in the Alternative, to Strike Affirmative Defenses, came on regularly for hearing before this Court.

Having considered Plaintiff's Motion, the Memorandum of Points and Authorities, the Court's records and files in this action, and the arguments of the parties, and good cause appearing therefor, THE COURT FINDS AND ORDERS AS FOLLOWS:

1. Plaintiff's Motion to Strike is GRANTED.

2. Defendants Diana Candelaria and Steve Gordon's Answer (ECF No. 11), filed on September 4, 2026, is hereby STRICKEN in its entirety pursuant to Federal Rule of Civil Procedure 12(f), on the ground that it responds solely to Plaintiff's superseded original Complaint (Dkt. 1) rather than Plaintiff's operative First Amended Complaint (Dkt. 6), rendering it a procedural nullity, redundant, immaterial, and impertinent.

3. In the alternative, Defendants' thirty-three (33) Affirmative Defenses (ECF No. 11 at 32-35) are hereby STRICKEN as legally insufficient, impertinent, and failing to state plausible defenses under Federal Rules of Civil Procedure 8 and 12(f).

4. Defendants shall file and serve an answer addressing the operative First Amended Complaint (Dkt. 6) within fourteen (14) days of the date of this Order.

5. Any answer filed by Defendants shall strictly conform to Federal Rule of Civil Procedure 8(b), admitting or denying each allegation or stating lack of knowledge or information sufficient to form a belief, and shall not assert evasive boilerplate denials stating that 'the law speaks for itself.'

IT IS SO ORDERED.

Dated: _____, 2026

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HON. LISA J. CISNEROS

United States Magistrate Judge